

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xix.]
Provisional Order Confirmation (Watford Extension)
Act, 1924.



CHAPTER xix.

An Act to confirm a Provisional Order of the Minister of Health relating to Watford. A.D. 1924.
[14th July 1924.]

WHEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888 : 51 & 52 Vict. c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Watford Extension) Act 1924. Short title.

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SCHEDULE.

BOROUGH OF WATFORD.

*Watford
Order.*

*Provisional Order made in pursuance of the Local
Government Act 1888 for the extension of a Borough..*

WHEREAS by virtue of Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any Borough;

And whereas the existing Borough of Watford in the Administrative County of Hertford is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Watford and act by the Council of the said Borough;

And whereas the said Borough comprises the Parishes of Watford Urban and Oxhey and is an Urban District under the jurisdiction of the Mayor Aldermen and Burgesses acting by the Council;

And whereas—

- (a) The Watford Urban District Council Act 1909 and the Confirmation Acts specified in the Schedule to this Order;
- (b) The Baths and Washhouses Acts 1846 to 1899;
- (c) The Infectious Disease (Prevention) Act 1890;
- (d) The Public Health Acts Amendment Act 1890;
- (e) The Public Libraries Acts 1892 to 1919; and
- (f) The Private Street Works Act 1892;

are in force in the said Borough;

And whereas the Burial Acts 1852 to 1906 are in force in an area comprising the existing Parishes of Watford Urban and Watford Rural and the powers and duties of the burial authority under those Acts are exercised by a joint committee appointed by the Council of the said Borough and by the Parish Council of

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Watford Rural in pursuance of subsection (2) of Section 53 of the Local Government Act 1894; A.D. 1924

And whereas by agreement with the County Council of Hertford the Urban District Council of Watford relinquished under Section 20 of the Education Act 1902 in favour of the County Council their powers and duties as a local education authority for the purposes of Part III. of that Act and the said Borough forms part of the area of the County Council as the local education authority for elementary education;

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Order.*

And whereas the Parish of Watford Rural in the Administrative County of Hertford immediately adjoins the said Borough and is a contributory place in the Rural District of Watford and is subject to the jurisdiction of the Rural District Council of Watford :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders that on and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

PART I.

INTERPRETATION AND COMMENCEMENT.

1. In this Order unless the context otherwise requires :— Definitions.

“ Existing ” in relation to any area altered by this Order means existing immediately before the commencement of this Order;

“ Officer ” includes a servant;

“ The Act of 1888 ” and “ the Act of 1894 ” mean respectively the Local Government Act 1888 and the Local Government Act 1894;

“ The added area ” means that part of the existing Parish of Watford Rural and of the Rural District of Watford which is coloured yellow on the Borough maps and is added to the existing Borough of Watford by this Order;

“ The Borough ” means the existing Borough of Watford as extended by this Order;

“ The Borough maps ” means the duplicate maps marked “ Map of the Borough of Watford as extended by “ the Watford (Extension) Order 1924 ” and sealed with the official seal of the Minister;

“ The commencement of this Order ” means the First day of October Nineteen hundred and twenty-four;

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- “ The Corporation ” means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council ;
- “ The County ” and “ the County Council ” mean respectively the Administrative County of Hertford and the County Council of that County ;
- “ The excluded part of Watford Rural ” means the part of the existing Parish of Watford Rural which is not added to the existing Borough by this Order ;
- “ The Guardians ” means the Guardians of the Watford Poor Law Union ;
- “ The Joint Burial Committee ” means the joint burial committee appointed for the existing Parish of Watford Urban and the existing Parish of Watford Rural under subsection (2) of Section 53 of the Local Government Act 1894 ;
- “ The Minister ” means the Minister of Health ;
- “ The Municipal Corporations Acts ” means the Municipal Corporations Act 1882 and the Acts amending and extending the same ;
- “ The Parish Council ” means the Parish Council of Watford Rural ;
- “ The Parish of Watford Urban ” and “ the Parish of Watford Rural ” mean respectively each of those existing parishes as altered by this Order ;
- “ The Rural District ” and “ the Rural Council ” mean respectively the Rural District of Watford and the Rural District Council thereof.

Commence-
ment of
Order.

2. This Order shall except so far as is otherwise herein expressly provided and except so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the First day of October Nineteen hundred and twenty-four :

Provided that for the purposes of all proceedings preliminary or relating to any election for any area affected by this Order to be held on a day later than the Thirtieth day of September Nineteen hundred and twenty-four this Order shall operate from the date of the Act of Parliament confirming this Order.

PART II.

ALTERATIONS OF BOUNDARY.

Extension of
Borough.

3.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered

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so as to include in addition to that area so much of the Rural District as comprises the added area. A.D. 1924.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

—
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Order.

4. The added area shall be separated from the existing Parish of Watford Rural and shall be added to the existing Parish of Watford Urban. Alteration of Parish.

5.—(1) One of the Borough maps shall be deposited in the office of the Minister and the duplicate thereof shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Deposit of maps.

(2) Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport and to the Minister of Agriculture and Fisheries.

6.—(1) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundary of the Borough. Copies of map to be evidence.

(2) The Borough map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(3) All fees so received shall be carried to the credit of the borough fund.

PART III.

PROVISIONS CONSEQUENT ON EXTENSION OF BOROUGH.

7. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:— Alteration of wards.

(1) For the purposes of the election of Councillors of the Borough the added area shall be included in the St. Andrews Ward of the existing Borough:

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Order.

(2) The Councillors representing the existing St. Andrews Ward who are in office at the commencement of this Order shall be deemed from and after such commencement to represent that Ward as extended by this Order and shall retire from office on the day on which they would have retired if this Order had not been made.

County and
 Borough
 Councils
 (Qualifica-
 tion) Act
 1914.

8. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the Borough.

County
 electoral
 divisions
 and polling
 districts.

9.—(1) For the purpose of the election of County Councillors the added area shall be included in the St. Andrews Electoral Division and Polling District.

(2) The person who immediately before the commencement of this Order is the County Councillor representing the existing Watford (Rural) Electoral Division or the existing St. Andrews Electoral Division shall be deemed to have been elected to represent that Division as altered by this Order and shall retire from office on the day on which he would have retired if this Order had not been made.

Officers of
 Corporation
 and Borough
 auditors
 continued.

10.—(1) The town clerk and all other officers of the Corporation of the existing Borough who hold office immediately before the commencement of this Order shall continue to be the town clerk and officers of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

(2) The auditors of the existing Borough who are in office immediately before the commencement of this Order shall continue in office until the next ordinary day of election of borough auditors.

Corporation
 property &c.

11. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which on the day aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on that day attach to the Corporation in respect of the existing Borough shall from and after that day attach to them in respect of the Borough.

Mortgage
 debts of
 Corporation.

12.—(1) So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon any fund of or rate levied within the existing Borough shall be charged upon the corresponding fund of or rate to be levied within the Borough.

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(2) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

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—
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Order.

13.—(1) The Confirmation Acts specified in Part I. of the Schedule to this Order so far as such Acts respectively relate to the Provisional Orders mentioned in that Part of the Schedule are hereby repealed.

Local Act
and Orders.

(2) Subject to the provisions of this Order the unrepealed provisions of—

- (a) The Watford Urban District Council Act 1909;
- (b) The Confirmation Acts specified in Part II. of the Schedule to this Order so far as such Acts respectively relate to the Provisional Orders mentioned in that Part of the Schedule; and
- (c) Any other Local Act or Provisional Order duly confirmed and affecting the existing Borough or the Corporation except the Provisional Orders mentioned in Part I. of the Schedule to this Order but including any Local Act or Provisional Order passed or confirmed during the present Session of Parliament;

as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the Urban District of Watford and the Urban District Council of Watford or to the existing Borough and the Corporation shall be deemed to refer to the Borough and Corporation thereof.

(3) For the purposes of subdivision (2) of this Article any order which has effect as if enacted by Parliament shall be deemed to be a Provisional Order confirmed by Parliament.

(4) Nothing in this Order shall alter the limits for the supply by the Corporation of water or electricity or shall affect the powers and privileges of the Colne Valley Water Company or the Watford Gas and Coke Company.

14. Nothing in this Order shall affect the provisions of Articles 8 9 and 10 of the Borough of Watford Scheme 1922 which relate to the continuance of the County Council as the local education authority within the Borough for the purposes of elementary education to a consolidation of the police forces of the Borough and of the County and to the exercise and performance by the County Council within the Borough of the powers duties and liabilities in respect of the appointment of analysts and other matters mentioned in Article 10 of that Scheme.

Borough of
Watford
Scheme
1922.

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Order.
Adoptive
Acts.

15.—(1) The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Public Libraries Acts 1892 to 1919 and the Private Street Works Act 1892 shall be in force in and apply to the Borough as if the same had been adopted for the Borough.

(2) The provisions of any Adoptive Act (other than the Burial Acts and the Acts mentioned in subdivision (1) of this Article) shall cease to be in force in and apply to any part of the added area.

(3) Any order under the Infectious Disease (Notification) Act 1889 or under any Adoptive Act mentioned in subdivision (1) of this Article which is in force immediately before the commencement of this Order throughout the existing Borough shall extend and apply to the added area and any order under the Infectious Disease (Notification) Act 1889 in force on the day aforesaid in the added area shall save as hereinbefore provided cease to be in force in that area.

Small Dwel-
lings Acquisi-
tion Acts
1899 to 1923.

16. For the purposes of the Small Dwellings Acquisition Acts 1899 to 1923 the Corporation shall be the local authority for the Borough.

Orders under
the Public
Health Acts
Amendment
Act 1907.

17. Subject to any order which the Minister or the Secretary of State may make after the commencement of this Order the following provisions shall have effect as regards orders under the Public Health Acts Amendment Act 1907—

(1) The provisions of any order made before the commencement of this Order and declaring to be in force throughout the existing Borough any Parts or Sections of that Act shall have effect as if any reference in that order to the existing Borough extended and applied to the Borough and as if the said Parts or Sections were accordingly declared to be in force in the Borough :

(2) Any other order under that Act which is in force at the commencement of this Order throughout the existing Borough shall extend and apply to the added area :

(3) The provisions of any order made before the commencement of this Order and declaring to be in force in the added area any Parts or Sections of that Act shall cease to apply to the added area and the Parts or Sections declared by any such order to be in force shall save as hereinbefore provided cease to be in force in the added area.

Burial Acts
1852 to 1906.

18.—(1) The Burial Acts 1852 to 1906 shall be in force within the Parish of Oxhey and that Parish shall be included in the area for which the Joint Burial Committee act as the authority for the execution of the Burial Acts.

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(2) The Joint Burial Committee shall be deemed to have been appointed for the Borough and for the Parish of Watford Rural and the number of members of the Joint Burial Committee appointed by the Corporation shall be increased by one.

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—
Watford
Order.

(3) At a meeting to be held in the month of October Nineteen hundred and twenty-four the Corporation shall appoint a person from among the Councillors representing the Oxhey Ward of the Borough who shall thereupon become the additional member of the Joint Burial Committee authorised by this Article.

(4) Any person appointed a member of the Joint Burial Committee in pursuance of this Article shall retire from office on the day of retirement of the other members of the Joint Burial Committee appointed by the Corporation.

(5) Subject to an adjustment under Section 62 of the Act of 1888 as applied by this Order all property and liabilities under the Burial Acts 1852 to 1906 which immediately before the commencement of this Order are held by or attach to the Corporation and the Parish Council on behalf of the existing Parish of Watford Urban and the existing Parish of Watford Rural shall be held by or attach to those authorities on behalf of the Borough and the Parish of Watford Rural.

(6) Any table of fees and charges in force in respect of any existing burial ground maintained by the Joint Burial Committee shall extend and apply to inhabitants of the burial area as extended by this Order as such table applies to inhabitants of the existing burial area.

(7) Nothing in this Order shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired prior to the commencement of this Order in relation to such burial ground.

(8) Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order is exerciseable by or attaches to any incumbent or sexton under the Burial Acts.

19. References in the Watford Joint Hospital Orders 1902 to 1913 to the Urban District of Watford and the Urban District Council of Watford shall be read as references to the Borough and to the Corporation thereof and any reference in those Orders to the Chairman or Vice-Chairman of the Urban District Council of Watford shall be read as a reference to the Mayor or Deputy Mayor of the Borough.

Watford
Joint
Hospital
District.

20.—(1) The powers duties and liabilities of a parish council transferred to or conferred upon the Urban District Council of Watford by the orders of the Local Government Board under Section 33 of the Act of 1894 dated respectively the Fifteenth day of March and the Twelfth day of November Eighteen hundred and ninety-five in relation to the appointment of

Orders under
Section 33 of
the Act of
1894.

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(2) An order may be made by the Minister under Section 33 of the Act of 1894 with respect to any charity held wholly or partly for the benefit of the inhabitants of the Parish of Watford Urban as it formerly existed or of the Parish of Oxhey as if this Order had not been made.

Orders under Shop Hours Act 1904 or Shops Acts 1912 to 1920. 21. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of such Acts remain in force and apply to the area to which it applied before the commencement of this Order.

Urban powers &c. in excluded part of Watford Rural. 22. All the powers rights duties capacities liabilities and obligations of an urban authority and all the powers in relation to the chargeability of expenses with which the Rural Council are invested in pursuance of any order issued by the Local Government Board or the Minister under the Public Health Acts in respect of the existing Parish of Watford Rural shall be deemed to vest in and attach to the Rural Council in respect of the Parish of Watford Rural.

Byelaws regulations scales of charges &c. 23.—(1) Subject to the provisions of this Order—
 (a) All byelaws and every scale of charges made by the Corporation (or their predecessors) which immediately before the commencement of this Order are in force throughout the existing Borough shall extend and apply to the Borough until such byelaws or scale of charges may expire be altered or repealed :
 (b) All byelaws made by the Rural Council (or their predecessors) and in force immediately before the commencement of this Order in the added area shall on such commencement cease to be in force therein except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Rural Council or have been sent to their surveyor or clerk one month at least before that date and have not been disapproved by that Council :
 (c) All byelaws made by the County Council and in force immediately before the commencement of this Order in the added area shall in so far as byelaws to the like effect could be made by the Corporation cease to be in force in that area.

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(2) As regards any work within the exception in paragraph (b) of subdivision (1) of this Article the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Rural Council and the Rural District.

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—
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Order.

(3) Any proceedings which if this Order had not been made might have been taken by the County Council or the Rural Council for any offence committed before the commencement of this Order against any byelaws which by virtue of this Article cease to be in force may be taken by the Corporation as if those byelaws had remained in force and the Corporation had been substituted therein for the County Council or the Rural Council as the case may require.

(4) In this Article "byelaws" includes any regulation and "scale of charges" includes any list of tolls or table of fees or payments.

24. Without prejudice to the power of the County Council to cancel or vary any charge or allocation made under subsection (1) of Section 18 of the Education Act 1902 or under subsection (1) of Section 122 of the Education Act 1921—

Education
charges.

- (1) Such portion of any expenses incurred by the County Council to meet the liability on account of the outstanding balance of any loan transferred to the County Council from the late School Board for Watford as was in pursuance of the enactments aforesaid raised within the area of the existing Parish of Watford Rural shall be raised as to one-fiftieth part thereof within the area of the Parish of Watford Urban and as to the residue thereof within the Parish of Watford Rural; and
- (2) Save as hereinbefore provided any expenses charged before the commencement of this Order in pursuance of the enactments aforesaid on the existing Parish of Watford Urban shall be charged on the Parish of Watford Urban and any expenses so charged before such commencement on the existing Parish of Watford Rural shall be charged on the Parish of Watford Rural.

25. Subject to the provisions of this Order—

- (1) The Rural Council shall cease to exercise any powers or discharge any duties within the added area:
- (2) Any property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council—

Cesser of
jurisdiction
of Rural
Council and
property &c.

(a) In relation exclusively to the added area or any part thereof; or

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Order.*

(b) In relation to the added area or any part thereof conjointly with any other area;

shall in the first case by virtue of this Order be transferred to and vest in the Corporation as the Urban Authority for the execution of the Public Health Acts and shall in the second case be a matter for adjustment under Section 62 of the Act of 1888.

Powers &c.
of the Parish
Council.

26.—(1) The Parish Council of the existing Parish of Watford Rural shall be deemed to have been elected as and shall be the Parish Council of that Parish as altered by this Order.

(2) Subject to the provisions of this Order any powers and duties transferred by or under the Act of 1894 to the Parish Council shall so far as regards the added area be vested in and imposed on the persons and authorities in or on whom they would be vested or imposed if the added area had been included in a parish within the Borough on the appointed day within the meaning of the Act of 1894.

(3) Any property or liabilities held or incurred by the Parish Council in relation exclusively to the added area or any part thereof for the purposes or by virtue of the powers and duties transferred by subdivision (2) of this Article shall by virtue of this Order be transferred to and vest in or attach to the persons and authorities aforesaid.

(4) Any property or liabilities held or incurred by the Parish Council in relation to the added area or any part thereof conjointly with any other area shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

(5) Subdivisions (3) and (4) of this Article shall not extend to property or liabilities held or incurred under the Burial Acts 1852 to 1906.

PART IV.

SUPPLEMENTARY PROVISIONS.

Guardians of
the Poor.

27.—(1) For the purposes of the election of Guardians the added area shall form part of the St. Andrews Ward of the Parish of Watford Urban.

(2) The persons who immediately before the commencement of this Order are the Guardians for the existing St. Andrews Ward of the Parish of Watford Urban shall be deemed to have been elected as and shall be the Guardians for that Ward as extended by this Order and shall retire from office on the day on which they would have retired if this Order had not been made.

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28. The persons who immediately before the commencement of this Order are the Rural District Councillors for the existing Parish of Watford Rural shall be deemed to have been elected as and shall be the Rural District Councillors for the Parish of Watford Rural and shall retire from office on the day on which they would have retired if this Order had not been made.

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—
Watford
Order.

Rural District
 Councillors
 for Watford
 Rural.

29.—(1) As soon as practicable after the commencement of this Order the Rural Council as regards any cash balance in their hands at the commencement of this Order shall estimate the proportion thereof derived from contributions paid by the added area and subject to a deduction on account of undischarged liabilities in respect of that area accruing up to the commencement of this Order shall transfer such amount to the Corporation.

Apportion-
 ment by
 the Rural
 Council of
 balances &c.

(2) This Article shall apply to any sum received after the commencement of this Order by the Rural Council under a precept issued before that date in respect of any area in which the added area is comprised as if such sum were a cash balance in the hands of the Council at the commencement of this Order.

(3) The apportionment under this Article of any balance or sum received under a precept shall be subject to review on an adjustment under this Order.

30. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect—

Adaptation
 of provisions
 as to adjust-
 ments.

(a) As if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order; and

(b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

31. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of the provisions of this Order which relate to the alteration of the area of any existing parish or the extension

Adjustment
 on altera-
 tions of
 parishes and
 burial area.

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A.D. 1924. of the area of the Joint Burial Committee that Section shall have effect—

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Order.*

- (1) As if the Overseers of the Parishes of Watford Urban Watford Rural and Oxhey were within the meaning of the said Section as applied by this Order authorities affected by this Order;
- (2) As if the poor rate or any other rate leviable in pursuance of the said Section as applied by this Order were substituted for any fund mentioned in the Section; and
- (3) As if for subsections (6) and (7) of the said Section there were substituted the subsections hereunder appended that is to say:—

“ (6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish.

“ (7) Any capital sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Minister of Health may authorise or direct.”

Balances in
accounts of
Guardians
Rural Coun-
cil and
Overseers.

32.—(1) Any balance standing at the commencement of this Order in the books of the Guardians or of the Rural Council to the credit or debit of the existing Parish of Watford Rural shall be a matter for adjustment under Section 62 of the Act of 1888.

(2) Any balance at the commencement of this Order in the hands of or due to the Overseers of the existing Parish of Watford Rural shall be a matter for adjustment under Section 62 of the Act of 1888.

Saving for
contribution
orders and
precepts.

33. Notwithstanding the alterations of area effected by this Order all contribution orders and precepts made or issued before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates &c.

34. All rates made by the Overseers of the existing Parish of Watford Rural and not collected at the commencement of this Order in respect of hereditaments in the added area shall be collected and recovered by the Overseers of the Parish of Watford Rural or other proper officer of that Parish.

Provisions as
to register
of electors.

35.—(1) In the preparation of the Autumn Register of Nineteen hundred and twenty-four in pursuance of the Representation of the People Acts 1918 to 1922 so far as it relates

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to any area affected by this Order it shall be competent to the Registration Officer of the Parliamentary County of Hertford to frame the register in separate parts for each area which will constitute a registration unit after this Order has come into operation instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

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—
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Order.

(2) If the register of local government electors for any electoral area affected by this Order is not so framed as to show the persons entitled to vote at an election or parish meeting to be held for an electoral division parish or ward or other voting area—

- (a) the Town Clerk of the Borough in the case of an election for any voting area within the Borough; and
- (b) the Registration Officer of the Parliamentary County in the case of an election or parish meeting for any voting area outside the Borough

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election or parish meeting.

(3) It shall be the duty of the Overseers to render such assistance as may be required by the Town Clerk of the Borough or Registration Officer of the Parliamentary County for the purpose of such alteration or re-arrangement.

(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

36. Until new valuation lists come into force—

Valuation
lists.

- (1) The valuation list of the existing Parish of Watford Urban and the portion of the valuation list of the existing Parish of Watford Rural which relates to hereditaments in the added area shall together form the valuation list of the Parish of Watford Urban:
- (2) The remaining portion of the valuation list of the existing Parish of Watford Rural shall be the valuation list of the Parish of Watford Rural.

37.—(1) Subject to any future revision the basis of the county rate of the County shall be altered as follows—

County rate
basis.

- (a) From the amounts respectively appearing therein as the net annual values of the agricultural land and of other hereditaments in the existing Parish of Watford Rural there shall be deducted such sums in each case as will represent the net annual values of the agricultural land and of other hereditaments in the added area:

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(b) The net annual values of the agricultural land and of other hereditaments in the added area shall be added to the amounts appearing in the basis as the net annual values of the agricultural land and of other hereditaments in the existing Parish of Watford Urban :

(c) The amounts appearing in the basis as the net annual value and the assessable value of the property in the existing Parish of Watford Urban and in the existing Parish of Watford Rural shall be altered so as to correspond with the alterations made as above directed in the net annual values of the agricultural land and of other hereditaments in those existing parishes.

(2) For the purposes of this Article the net annual value of the agricultural land in the added area shall be the amount which bears the same relation to the net annual value of agricultural land in the existing Parish of Watford Rural as the total rateable value of the agricultural land in the added area bears to the total rateable value of the agricultural land in the existing Parish of Watford Rural.

(3) For the purpose of ascertaining the net annual value of other hereditaments (not being agricultural land) in the added area the preceding subdivision of this Article shall apply with the substitution for "agricultural land" of "hereditaments other than agricultural land."

(4) In this Article "net annual value" and "assessable value" mean the net annual value and assessable value according to the basis of the county rate which is being altered in pursuance of this Article and "total rateable value" means the total rateable value according to the valuation list of the existing parish last in force before the basis is so altered.

(5) For the purpose of the preparation of any order for county contributions to be issued by the County Council after the commencement of this Order this Article shall operate from the date of the Act of Parliament confirming this Order.

Settlement
of the Poor.

38.—(1) Every person who at any time before the commencement of this Order has acquired or who immediately before such commencement is in the course of acquiring a settlement in the existing Parish of Watford Urban or in the existing Parish of Watford Rural by reason of residence birth or other qualification in—

(i) the existing Parish of Watford Urban; or
(ii) the added area; or
(iii) the excluded part of Watford Rural;
shall be deemed to have acquired or to be in the course of acquiring thereby—

(a) in the first and second cases a settlement in the Parish of Watford Urban as if the existing Parish of Watford

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Urban and the added area had always been the Parish of Watford Urban; and

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- (b) in the third case a settlement in the Parish of Watford Rural as if the excluded part of Watford Rural had always been the Parish of Watford Rural.

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(2) For the purposes of this Article consecutive periods of residence in the added area and in the excluded part of Watford Rural shall be aggregated and reckoned as continuous residence in that part of the existing Parish of Watford Rural in which the person was residing immediately before the commencement of this Order.

39.—(1) The Overseers of the existing Parish of Watford Urban or of the existing Parish of Watford Rural shall be the Overseers of the Parish of Watford Urban or of the Parish of Watford Rural (as the case may be).

Overseers.
 Assistant Overseers and Collector.

(2) Any person holding immediately before the commencement of this Order the office of—

(a) Assistant Overseer of the existing Parish of Watford Urban or of the existing Parish of Watford Rural; or

(b) Collector of Poor Rates of the existing Parish of Watford Rural

shall act for that Parish as altered by this Order and shall continue to hold office upon the same terms and subject to the same regulations liabilities and provisions as now apply to him in respect of that office.

40.—(1) Every officer in office on the date of the Act of Parliament confirming this Order who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary (and for whose compensation no other provision is made by any enactment for the time being in force) shall be entitled to compensation for that loss from the Corporation.

Compensation to existing officers.

(2) Any officer whose services are dispensed with or whose salary is reduced within three years from the commencement of this Order because his services are not required or because his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed unless the contrary be shown to have suffered a direct pecuniary loss in consequence of this Order.

41.—(1) Sections 25 26 and 27 of the Municipal Corporations Act 1882 and Section 246 of the Public Health Act 1875 shall not apply to the accounts of the Corporation or of the treasurer of the Borough or of the officers of the Corporation for the

Audit of accounts of the Corporation.

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(2) All such accounts whether under any public or any local Act or otherwise relating to matters dealt with by the Corporation in any capacity shall be made up and audited in like manner as the accounts of an urban authority for the execution of the Public Health Acts (not being the council of a borough) and of their officers are made up and audited and shall be in such form as the Minister may prescribe.

(3) This Article shall extend to the accounts for any financial year mentioned in subdivision (1) of this Article of any joint committee appointed by the Corporation with any other council and of the officers of any such joint committee.

(4) Sections 247 and 250 of the Public Health Act 1875 Section 58 of the Local Government Act 1894 and all enactments amending those Sections or relating to the accounts and audit by district auditors of the accounts of an urban authority (not being the council of a borough) and of their officers shall apply for the purposes of this Order as if they were herein re-enacted with the necessary modifications.

Power of the Corporation to defray certain expenses.

42. The Corporation may out of the borough fund defray reasonable expenditure incurred by them upon any of the following purposes :—

- (1) annual or other subscriptions to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government ;
- (2) the attendance of any members or officers of the Corporation (not exceeding in any case four) at conferences or meetings of any such association and in the purchase of reports of the proceedings of any such conferences or meetings ;
- (3) in connection with the presentation of the freedom of the Borough to persons whom the Corporation may resolve to admit as honorary freemen ; or
- (4) in connection with occasions of public ceremony or festival or in the reception or entertainment of distinguished persons.

Determination of compensation.

43.—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Order regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned.

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(2) Any compensation payable under this Order to any person whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 shall be paid out of the district fund and general district rate of the Borough and in every other case shall be paid out of the borough fund and borough rate of the Borough and the provisions of Section 120 of the Act of 1888 shall apply subject to the following and any necessary modifications :—

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- (a) Any reference in that Section to the county council shall be construed as a reference to the Corporation and in subsection (7) of that Section for the words "the same or any other county council" there shall be substituted the words "the council of any county or county borough or under any district council";
- (b) References in that Section to "the passing of this Act" shall be construed as references to the commencement of this Order; and
- (c) The expression in subsection (1) of that Section "the Acts and rules relating to Her Majesty's Civil Service" shall mean the Acts and rules relating to Her Majesty's Civil Service which were in operation at the date of the passing of the Act of 1888.

(3) The compensation payable under this Order to an officer who at the date of the Act of Parliament confirming this Order shall hold two or more offices under any local authority or local authorities (as defined in Section 34 of the Local Loans Act 1875) and who shall have devoted the whole of his time to the duties of such offices shall not be reduced by reason of the fact that he has devoted only part of his time to each of such offices.

(4) If any officer was temporarily absent from his employment during the war whilst serving in His Majesty's Forces or the Forces of the Allied or Associated Powers either compulsorily or with the sanction or permission of the local authority such period of temporary absence shall be reckoned as service under the local authority in whose employment he was immediately before and after such temporary absence and the amount of his salary wages and emoluments during such temporary absence shall be deemed to be the amount which he would have received from the local authority during that period if he had remained in their actual service :

Provided that in the case of an officer who after the Armistice voluntarily extended his term of service in the Forces no period of absence during such extension shall be so reckoned.

(5) The Corporation may in their discretion and in consideration of the fact that any officer was appointed to his office as a specially qualified person or of the fact that he had prior to his appointment served as a deputy assistant or clerk to

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A.D. 1924. any officer not holding a temporary appointment add any number of years (not exceeding ten) to the number of years which such officer would otherwise be entitled to reckon for the purpose of computing the compensation to which he would be entitled under the Acts and rules relating to Her Majesty's Civil Service as applied by this Order.

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Compensa-
tion and
superannua-
tion.

44. No officer shall be entitled to receive both compensation under this Order for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Saving for
qualification
of councillors
&c.

45. Any councillor or guardian who is to continue in office after the commencement of this Order shall not during his present term of office be deemed to lose his qualification for being a councillor or guardian by reason of the alterations of area made by this Order.

Savings for
actions con-
tracts &c.

46. No alteration effected by this Order shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council or any contract deed bond agreement or other instrument (subsisting at the commencement of this Order) entered into or made by that Council or their predecessors :

Provided that—

(i) Any action cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to the added area or any part thereof may be continued prosecuted and enforced by or against the Corporation ; and

(ii) All contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council (or their predecessors) in relation exclusively to the added area or any part thereof may be continued and enforced as fully and effectually as if instead of that Council (or their predecessors) the Corporation had been a party thereto.

Saving for
powers of
Minister &c.

47. Nothing in this Order shall be construed as restricting the powers of the Minister under the Acts relating to the Relief of the Poor or the powers of the Secretary of State the Minister or the County Council under the Act of 1888 or the Act of 1894.

Parliamen-
tary polling
districts.

48. Nothing in this Order shall affect the powers of the County Council under Section 31 of the Representation of the People Act 1918 or any order or scheme made by the County

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Council for the division of the Parliamentary County of Hertford into polling districts and the appointment of polling places for parliamentary elections.

49. Nothing in this Order shall affect the powers of the County Council for the division of the County into polling districts for the election of county councillors or (save as in this Order expressly provided) any existing order or scheme for that purpose or for naming the polling places at any such election.

50. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

51. This Order may be cited as the Watford (Extension) Short title.
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THE SCHEDULE.

CONFIRMATION ACTS IN FORCE IN THE EXISTING
BOROUGH.

PART I.

CONFIRMATION ACTS TO BE REPEALED IN SO FAR AS THEY
RELATE TO CERTAIN PROVISIONAL ORDERS THEREBY^o
CONFIRMED.

Session and Chapter.	Short Title.	Provisional Order thereby confirmed.
13 & 14 Vict. c. 108.	The Public Health Supplemental Act 1850 (No. 3).	The Provisional Order of the General Board of Health relating to Watford.
45 & 46 Vict. c. lxi.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1882.	The Provisional Order of the Local Government Board relating to the Local Government District of Watford.

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PART II.

Watford
Order.

CONFIRMATION ACTS TO BE EXTENDED TO THE BOROUGH.

Session and Chapter.	Short Title.	Provisional Order thereby confirmed.
60 & 61 Vict. c. lxiii.	The Electric Lighting Orders Confirmation (No. 3) Act 1897.	The Watford Electric Lighting Order 1897.
4 Edw. 7. c. clxxv.	The Electric Lighting Orders Confirmation (No. 2) Act 1904.	The Watford Electric Lighting Order 1904.
3 & 4 Geo. 5. c. xxiii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1913.	The Watford Order 1913.
3 & 4 Geo. 5. c. cliii.	The Electric Lighting Orders Confirmation (No. 5) Act 1913.	The Watford Electric Lighting (Extension) Order 1913.
4 & 5 Geo. 5. c. cxx.	The Electric Lighting Orders Confirmation (No. 7) Act 1914.	The Watford Electric Lighting (Extension) Order 1914.
7 & 8 Geo. 5. c. lvii.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1917.	The Watford Order 1917.

Given under the Official Seal of the Minister of Health
this Thirteenth day of March One thousand nine
hundred and twenty-four.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

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